6 The following new chapter is inserted after existing chapter 11:

"Chapter 11-1
Voyage planning for fishing vessels of 24 metres in length overall and above, pleasure yachts of 300 gross tonnage and upwards not engaged in trade and cargo ships of 300 gross tonnage and upwards but below 500 gross tonnage

This chapter applies to the following ships operating in polar waters:

.1 fishing vessels of 24 metres in length overall and above;

.2 pleasure yachts of 300 gross tonnage and upwards not engaged in trade; and

.3 cargo ships of 300 gross tonnage and upwards but below 500 gross tonnage.

11-1.1 Goal

The goal of this chapter is to ensure that the company, master and crew are provided with sufficient information to enable operations to be conducted with due
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SOURCE: MSC.538(107).pdf
URL: https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.538(107).pdf
with sufficient information to enable operations to be conducted with due consideration to safety of ship and persons on board and, as appropriate, environmental protection.

RESOLUTION MSC.538(107) (adopted on 8 June 2023)
AMENDMENTS TO THE INTERNATIONAL CODE FOR SHIPS OPERATING IN POLAR WATERS (POLAR CODE)
6

11-1.2 Functional requirement

In order to achieve the goal set out in paragraph 11-1.1 above, the voyage plan shall take into account the potential hazards of the intended voyage.

11-1.3 Requirements

In order to comply with the functional requirement of paragraph 11 -1.2 above, the master shall consider a route through polar waters, taking into account the following:

.1 the procedures required by the safety management system on board; if no safety management system is implemented there shall be a documented procedure for operation in polar waters;

.2 any limitations of the hydrographic information and aids to navigation available;

SOURCE: MSC.538(107).pdf
URL:

https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.538(107).pdf
be a documented procedure for operation in polar waters;

.2 any limitations of the hydrographic information and aids to navigation available;

.3 current information on the extent and type of ice and icebergs in the vicinity of the intended route;

.4 statistical information on ice and temperatures from former years;

.5 places of refuge;

.6 current information and measures to be taken when marine mammals are encountered relating to known areas with densities of marine mammals, including seasonal migration areas;

.7 current information on relevant ships' routeing systems, speed recommendations and vessel traffic services relating to known areas with densities of marine mammals, including seasonal migration areas;

.8 national and international designated protected areas along the route; and

.9 operation in areas remote from search and rescue (SAR) capabilities."

RESOLUTION MSC.538(107) (adopted on 8 June 2023)

SOURCE: MSC.538(107).pdf
URL:
https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.538(107).pdf
route; and

.9 operation in areas remote from search and rescue (SAR) capabilities."

ANNEX 2

AMENDMENTS TO THE INTERNATIONAL CODE FOR SHIPS OPERATING IN POLAR WATERS (POLAR CODE)

Part I-B
Additional guidance regarding the provisions of the Introduction and Part I-A

10 Additional guidance to chapter 9
(Safety of navigation)

7 The heading of section 10 is replaced by the following:

"10 Additional guidance to chapters 9 and 9-1"

12 Additional guidance to chapter 11
(Voyage planning)

8 The heading of section 12 is replaced by the following:

"12 Additional guidance to chapters 11 and 11-1"

RESOLUTION MSC.538(107) (adopted on 8 June 2023)
AMENDMENTS TO THE INTERNATIONAL CODE FOR
SHIPS OPERATING IN POLAR WATERS (POLAR CODE)
RESOLUTION MSC.538(107) (adopted on 8 June 2023)

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SHIPS OPERATING IN POLAR WATERS (POLAR CODE)

SOURCE: MSC.540(107).pdf
URL:
https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.540(107).pdf
RESOLUTION MSC.540(107) (adopted on 8 June 2023)
AMENDMENTS TO THE INTERNATIONAL CONVENTION ON STANDARDS OF
TRAINING, CERTIFICATION AND WATCHKEEPING FOR SEAFARERS (STCW), 1978
RESOLUTION MSC.540(107)
(adopted on 8 June 2023)
AMENDMENTS TO THE INTERNATIONAL CONVENTION ON STANDARDS OF
TRAINING, CERTIFICATION AND WATCHKEEPING FOR SEAFARERS (STCW), 1978
THE MARITIME SAFETY COMMITTEE,
RECALLING Article 28(b) of the Convention on the International Maritime Organization concerning the functions of the Committee,
RECALLING ALSO article XII of the International Convention on Standards of Training, Certification and Watchkeeping for Seafarers, 1978 ("the 1978 STCW Convention"), concerning the procedures for amending the 1978 STCW Convention,

RECOGNIZING the need for providing a timely response to the global digitalization trend, as well as a solution for the management and control of seafarers' certificates issued pursuant to the 1978 STCW Convention,

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SOURCE: MSC.540(107).pdf
URL:
https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.540(107).pdf

well as a solution for the management and control of seafarers' certificates issued pursuant to the 1978 STCW Convention,

HAVING CONSIDERED, at its 107th session, amendments to the 1978 STCW Convention proposed and circulated in accordance with article XII(1)(a)(i) thereof,

1 ADOPTS, in accordance with article XII(1)(a)(iv) of the 1978 STCW Convention, amendments to said Convention, the text of which is set out in the annex to the present resolution;

2 DETERMINES, in accordance with article XII(1)(a)(vii)(2) of the 1978 STCW Convention, that said amendments shall be deemed to have been accepted on 1 July 2024, unless, prior to that date, more than one third of Parties or Parties the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the world's merchant shipping of ships of 100 gross register tons or more have notified to the Secretary-General of the Organization that they object to the amendments;

SOURCE: MSC.540(107).pdf
URL:
https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.540(107).pdf

shipping of ships of 100 gross register tons or more have notified to the Secretary-General of the Organization that they object to the amendments;

3 INVITES Parties to note that, in accordance with article XII(1)(a)(ix) of the 1978 STCW Convention, the amendments annexed hereto shall enter into force on 1 January 2025 upon their acceptance, in accordance with paragraph 2 above;

4 URGES Parties to implement the amendments to regulations I/1 and I/2 at an early stage;

5 REQUESTS the Secretary-General, for the purposes of article XII(1)(a)(v) of the 1978 STCW Convention, to transmit certified copies of the present resolution and the text of the amendments contained in the annex to all Parties to the 1978 STCW Convention;

6 ALSO REQUESTS the Secretary-General to transmit copies of this resolution and its annex to Members of the Organization, which are not Parties to the 1978 STCW Convention.